

election approving a local sales tax increase and to adopt an ordinance to implement the results in such a short time frame would preclude a city from taking action at its regular meeting (unless one was already serendipitously scheduled) and would necessitate a special meeting. In this case, the court understands the CITY's regular meeting was on December 3, 2024.

The conclusion that an interpretation requiring city action by December 12 was in error is further supported by the 2025 amendment to Section 7265.

Whether a violation is likely to be continuous or ongoing is one of the issues in this suit.

CANNOVA vs. PACIFIC GAS AND ELECTRIC COMPANY, et al.
Case No. CU25-11883

PACIFIC GAS AND ELECTRIC COMPANY'S NOTICE OF MOTION AND MOTION TO STRIKE PUNITIVE DAMAGES

TENTATIVE RULING

This motion to strike seeks to strike allegations in a pleading that is not yet before the court.

In early February, Defendant filed an answer to the original complaint filed by Plaintiff.

A plaintiff can amend without leave of court only if no answer has been filed, or if a demurrer is filed, before the deadline for opposition to the demurrer. C.C.P. §472(a).

The court is aware that during the brief period of time this case had been removed to federal court, the parties filed a stipulation, approved to some degree by the federal court magistrate, to allow Plaintiff to file a first amended complaint which was purportedly attached to the stipulation, as part of the process of returning the case to state court. While a copy of that stipulation and order is in the court's electronic file, no copy of the proposed first amended complaint is attached to it. Furthermore, from Plaintiff's opposition, it appears that the proposed first amended complaint was not filed, either in the federal court, nor in the present state court; and that Plaintiff instead, after this motion to strike was filed, unsuccessfully attempted to file a different version of a first amended complaint than had been attached to the stipulation.

Until Plaintiff obtains leave from this state court to file a first amended complaint, the operative pleading is the original complaint, which Defendant has already answered, and this motion to strike allegations in a first amended complaint is premature.

The court therefore declines to rule on this motion.

This renders moot Plaintiff's arguments in the opposition that the notice of motion failed to identify the date, time and place of hearing for this motion to strike, and misidentified the paragraphs containing punitive damage allegations Defendant was seeking to strike.

While declining to rule on this premature motion, the court offers the following observations, to aid both sides in any subsequent meet and confer efforts over any new proposed first amended complaint that Plaintiff might seek leave to file:

Civil Code §3294 allows for recovery of punitive damages "where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice"

Assuming that the alleged termination of the employment of an employee for the improper purpose of discouraging employees from requesting medical leave and/or reporting workplace injuries could constitute oppression or malice (a reasonable assumption), a plaintiff seeking punitive damages against a corporate employer must also allege that the termination decision was made, authorized or ratified by a corporate officer, director, or managing agent. Civil Code §3294(b).

A managing agent is one who has substantial discretionary authority over decisions that ultimately determine corporate policy.

[T]he Legislature intended that principal liability for punitive damages not depend on employees' managerial level, but on the extent to which they exercise substantial discretionary authority over decisions that ultimately determine corporate policy. Thus, supervisors who have broad discretionary powers and exercise substantial discretionary authority in the corporation could be managing agents. Conversely, supervisors who have no discretionary authority over decisions that ultimately determine corporate policy would not be considered managing agents even though they may have the ability to hire or fire other employees. In order to demonstrate that an employee is a true managing agent under section 3294, subdivision (b), a plaintiff seeking punitive damages would have to show that the employee exercised substantial discretionary authority over significant aspects of a corporation's business. White v. Ultramar (1999) 21 Cal.4th 563, 576–577.

See also Colucci v. T-Mobile USA, Inc. (2020) 48 Cal.App.5th 442, 451.

At the very outset of a case, a plaintiff may not have any reason to know who made, authorized or ratified the decision to terminate the employment.

When the facts lie more in the knowledge of the defendant than the plaintiff, courts can excuse the plaintiff from the specificity in pleading ordinarily required. Tenet Healthsystem Desert, Inc. v. Blue Cross of California (2016) 245 Cal.App.4th 821, 838 [the requirement of specificity of alleging fraud against a corporation is reduced when the defendant must necessarily possess full information about the facts and the plaintiff cannot reasonably be expected to have access to that same information at time of pleading].

It is now almost eight months after the time Defendant filed its answer to the complaint.

Upon the general appearance of a defendant in a case, a plaintiff is authorized to conduct most types of discovery. See, e.g., C.C.P. §2025.210(b) [deposition notice can be served by a plaintiff on a defendant 20 days after completion of service, or when the defendant has appeared in the action, whichever occurs first]; §2030.020(b) [a plaintiff can propound interrogatories on a defendant 10 days after completion of service, or when the defendant has appeared in the action, whichever occurs first]; §2031.020(b) [same general appearance or 10 days after service threshold for propounding requests for production]; §2033.020(b) [same for propounding requests for admissions].

At this stage of the case, there would appear to be little excuse for a plaintiff not to have conducted the discovery necessary to properly allege the act at issue was made, authorized or ratified by a corporate officer, director, or managing agent who can be identified by name and/or title, if such facts exist. Any amended complaint failing to include such allegations would appear susceptible to a properly noticed and filed motion to strike by a corporate defendant.

TERCIERA HARGROVE v. ELISE SINDLINGER, ET AL.
Case No. CU26-01629

SINDLINGER's Demurrer

TENTATIVE RULING

Moving party to appear. The notice of motion fails to include notice of the court's tentative ruling system as required by Local Rule 3.9.

Defendant ELISE SINDLINGER demurs to Plaintiff TERCIERA HARGROVE's first amended complaint alleging breach of contract.

The court has not received opposition to the demurrer.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint must allege facts sufficient to establish every element of each cause of action. (*Rakestraw v. California Physicians' Service* (2000) 81 Cal.App.4th 39, 43.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)